

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Kobi Bordoley	Team: Squad #03	CCRB Case #: 201609606	☐ Force	☐ Discourt.	☐ U.S.
			☐ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Wednesday, 11/16/2016 10:50 PM	Location of Incident: 83rd Street and 4th Avenue	18 Mo. SOL 5/16/2018	Precinct: 68		
Date/Time CV Reported Wed, 11/16/2016 11:00 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 11/16/2016 11:00 PM		
Complainant/Victim	Type	Home Address			
Subject Officer(s)	Shield	TaxID	Command		
1. POM Daniel Boyle	08547	948689	068 PCT		
Witness Officer(s)	Shield No	Tax No	Cmd Name		
1. POM Christophe Alverio	19083	958240	068 PCT		
Officer(s)	Allegation	Investigator Recommendation			
A . POM Daniel Boyle	Off. Language: Police Officer Daniel Boyle made remarks to § 87(2)(b) based on § 87(2)(b)'s perceived mental health.	A . Unsubstantiated			

Case Summary

On November 16, 2016, § 87(2)(b) made the following complaint with the CCRB via telephone.

On November 16, 2016, at approximately 10:50 P.M., § 87(2)(b) was in the vicinity of 82nd Street and 4th Avenue in Brooklyn, looking for her lost ID. At the time, she on the phone with someone from 911, as she had been calling all day about her neighbors, with whom she has a dispute. At some point during the incident, § 87(2)(b) spoke on the phone to an IAB officer. While walking, § 87(2)(b) noticed a parked police vehicle nearby, inside of which were PO Daniel Boyle, of the 63rd Precinct, who was sitting in the driver's seat, and PO Christophe Alverio, also of the 63rd Precinct. § 87(2)(b) spoke to PO Boyle, and mentioned that she had been calling 911 about a dispute with her neighbors and an order of protection violation. PO Boyle said that she did not have a valid order of protection, and then called someone § 87(2)(b) believed to be PAA Hines at the stationhouse. § 87(2)(b) overheard part of that conversation, and heard PO Boyle say "I told you she was crazy," (**Allegation A**). At some point during the incident, § 87(2)(b) asked PO Boyle for his name and shield number, which he wrote down on a piece of paper and provided to her. § 87(2)(b) did not interact with PO Alverio during the incident.

There is no video footage of this incident.

Mediation, Civil and Criminal Histories

- Mediation was not offered to § 87(2)(b) § 87(2)(g)
- On February 7, 2017, a FOIL registration confirmed that § 87(2)(b) has not filed any Notices of Claim for this incident (01 Board Review).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- § 87(2)(b) has four other CCRB Complaints, containing 8 total allegations. § 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(g)
- PO Boyle has been a member of the NYPD for six years and has one other CCRB case involving three allegations, which is under active investigation. § 87(2)(g)

Findings and Recommendations

Allegation A – Offensive Language: Police Officer Daniel Boyle made remarks to § 87(2)(b) based on § 87(2)(b)'s perceived mental health.

§ 87(2)(b) said that after arriving in the vicinity of 82nd Street and 4th Avenue, she approached PO Boyle and brought up her dispute with her neighbors. PO Boyle said that she did not have an order of protection against them. PO Boyle then spoke with someone who she believed to be PAA Hines, and stated, “I told you she was crazy.” § 87(2)(b) was speaking on the phone to either 911 or an IAB officer during the incident. Before leaving, § 87(2)(b) asked PO Boyle for his name and shield number, which he wrote down on a piece of paper and provided to her (03 Board Review). § 87(2)(g)

During § 87(2)(b)'s phone call with PO Trotman of IAB, which took place during the incident, § 87(2)(b) mentioned that she was disputing an order of protection with nearby police officers. PO Trotman told her to finish interacting with the police before speaking with her. § 87(2)(b) then hung up the phone. No officers can be heard in the background on the recording (06 Board Review).

PO Boyle said that he and his partner were in the vicinity of 83rd Street and 4th Avenue handling a traffic accident report when § 87(2)(b) approached him in his vehicle. PO Boyle recalled that § 87(2)(b) mentioned an order of protection, and that there had been a call for a violation of an order of protection earlier that evening. PO Boyle recalled calling PAA Hines to determine the validity of § 87(2)(b)'s order of protection, as § 87(2)(b) could not remember its details. After confirming with PAA Hines that § 87(2)(b) did not have a valid order of protection, § 87(2)(b) became angry, and asked PO Boyle for his name and shield number. PO Boyle exited his vehicle and wrote down his name and shield for her, on a piece of paper. PO Boyle denied saying, “I told you she was crazy,” while speaking on the phone. PO Boyle did not think he referred to § 87(2)(b) as crazy, and § 87(2)(b) never complained about being called crazy. PO Boyle denied talking to PAA Hines about § 87(2)(b)'s mental health (04 Board Review).

PO Alverio said that he did not interact with § 87(2)(b) during the incident, as he was busy filling out reports from earlier incidents that day. PO Alverio recalled that § 87(2)(b) told PO Boyle that she had a dispute with her neighbors, who had violated an order of protection. PO Boyle then searched the computer system in the vehicle for evidence of the order of protection, and after that called a PAA to discuss the matter further. PO Alverio did not recall the contents of that conversation. PO Alverio did not recall if PO Boyle ever said, “I told you she was crazy,” while on the phone with a PAA, and did not recall PO Boyle making references to § 87(2)(b)'s mental health while on the phone or to § 87(2)(b) herself. PO Alverio did not think § 87(2)(b) ever complained about being called crazy (05 Board Review).

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** be *unsubstantiated*.

Squad: 3

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date